

December 01, 2016



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20313

EXPIRATION DATE: 2017-06-30

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: TIER Holdings, LLC
dba TIER Environmental Services, Inc.
Gap, PA
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-way transportation in commerce of sodium in two non-DOT specification portable tanks. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.244(c) in that non-DOT specification portable tanks are not authorized, except as specified herein.
5. BASIS: This special permit is based on the application of TIER Holdings, LLC dba TIER Environmental Services, Inc. dated August 19, 2016 submitted in accordance with § 107.105 and the public proceeding thereon.

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6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Sodium	4.3	UN1428	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packagings prescribed are two non-DOT specification, jacketed ASME portable tanks that contain sodium metal in a non-elevated temperature form. The tanks each stand at a height of 5 feet and 11.75 inches, and have a diameter of 40 inches. Each tank has a side wall thickness of 0.3125 inch and the jacket it is enclosed in has a wall thickness of 0.25 inch. The non-DOT specification portable tanks each contain approximately 1,800 lbs. of sodium.

b. OPERATIONAL CONTROLS -

(1) One-way transportation of the sodium tanks described above is authorized from Indianapolis, IN to Niagara Falls, New York. There may not be any intermediate stops for loading or unloading hazardous materials. Once delivered to the destination, transportation of that portable tank under the terms of this special permit is prohibited.

(2) The tanks must be purged by nitrogen or other means to remove air prior to transportation.

(3) All tank openings must be sealed and protected with a nitrogen blanket to prevent air or moisture from entering the tank during transportation.

(4) The tanks must be transported on a flatbed or van box trailer. The tanks must be covered during transportation to protect the tank(s) from moisture. No other hazardous material(s) must be transported with or onboard the vehicle.

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(5) The tanks must be properly secured, blocked and braced to prevent shifting under conditions normally incident to transportation.

(6) Each driver of the motor vehicle(s) must be specifically trained in the hazards associated with the hazardous material being transported and be knowledgeable in the appropriate emergency response procedures.

(7) Each driver of the motor vehicle(s) must have the capability to contact the appropriate emergency response organizations in the event of an accident or an emergency involving the hazardous materials being transported.

(8) If both tanks are transported together, the total amount of sodium cannot exceed the combined weight within both tanks, which is 3,600 lbs.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

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- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of

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this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Acting Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: MAJORS